



United States
Attorney's Office
Western District of Virginia



Former Senior Partner at McKinsey & Company Sentenced

Friday, May 23, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Virginia

Martin Elling to Serve Six Months in Federal Prison for Obstructing Justice Related to his Work with Purdue Pharma

ABINGDON, Va. – A former senior partner at McKinsey & Company, a global management consulting firm based in New York, N.Y., that agreed in 2024 to pay \$650 million to resolve criminal and civil investigations into the firm's consulting work with opioids manufacturers, including Purdue Pharma, L.P., was sentenced yesterday to six months in federal prison for obstructing justice related to his work on Purdue matters. In addition, Elling was ordered to serve two years of supervised release following his incarceration, which includes a requirement that he perform 1,000 hours of community service. The court also imposed a \$40,000 fine.

Martin Elling, 60, a U.S. citizen most recently residing in Bangkok, Thailand, pled guilty in January 2025 to a one-count Information charging him with knowingly destroying records with the intent to impede, obstruct, and influence the investigation and proper administration of a matter within the jurisdiction of the United States Department of Justice.

"Martin Elling willfully destroyed records in order to obstruct a Department of Justice investigation related to the actions of McKinsey & Company, Purdue Pharma and the opioid crisis that has devastated communities in this region. He will now have six months to fully comprehend the consequences of those actions," Acting United States Attorney Zachary T. Lee said today. "This sentence should be an example to all individuals considering similar actions - if you destroy records, if you impeded a Department of Justice investigation, you will go to jail."

"Today's sentencing sends a resounding message: those who attempt to obstruct justice and conceal the truth – no matter how senior, sophisticated, or well-connected – will be held accountable," said Leah B. Foley, U.S. Attorney for the District of Massachusetts. "Mr. Elling's efforts to erase evidence tied to

McKinsey's work with Purdue Pharma were not just a breach of corporate integrity – they were a calculated effort to hinder a federal investigation into one of the most devastating public health crises in our nation's history. Justice requires the truth, and our office will continue to pursue it wherever the facts lead."

"Knowingly destroying records and documents to impede a government investigation into the unlawful prescribing of opioids impairs the ability of law enforcement to do its job and endangers the public health," said Special Agent in Charge George A. Scavdis of the FDA Office of Criminal Investigations Metro Washington Field Office. "We will continue to investigate and bring to justice those who attempt to thwart these important investigations and whose actions put profits over patient safety."

"The opioid epidemic has left a trail of heartbreak across Virginia and the nation," said Virginia Attorney General Jason Miyares. "I commend both the US Department of Justice and my office's Medicaid Fraud Control Unit for their exemplary efforts and partnership to ensure justice is served."

According to court documents, in May 2013, Purdue engaged McKinsey to recover lost OxyContin sales. Purdue retained McKinsey to conduct a rapid assessment of the underlying drivers of OxyContin performance, identify key opportunities to increase near-term OxyContin revenue and develop plans to capture priority opportunities. This 2013 effort was called Evolve to Excellence, or "E2E," and included McKinsey advising Purdue on how to "turbocharge" the sales pipeline for OxyContin by, among other strategies, intensifying marketing to High Value Prescribers.

Elling served as the director of the client services team for approximately 30 of McKinsey's engagements with Purdue. He had a senior, relationship-focused role with respect to the E2E engagement and was involved in securing the engagement for McKinsey.

On July 4, 2018, Elling emailed another senior partner: "Just saw in the FT that [Purdue board member] is being sued by states attorneys general for her role on the [Purdue] Board. It probably makes sense to have a quick conversation with the risk committee to see if we should be doing anything other [than] eliminating all our documents and emails. Suspect not but as things get tougher there someone might turn to us."

According to court documents, forensic analysis of Elling's McKinsey-issued laptop found that Elling in fact deleted materials related to McKinsey's work for Purdue from the laptop, as well as a Purdue-related folder from his Outlook email account. On August 22, 2018, Elling emailed himself an apparent to-do list, with the subject line, "When home." The items listed included: "delete old pur [Purdue Pharma] documents from laptop[.]" Forensic analysis of Elling's laptop by the Department of Justice's Computer Crimes and Intellectual Property Section determined that between approximately April 2018 and September 2018, Elling removed a folder titled "Purdue" (which included a subfolder entitled "Strategy") from his Windows operating system that contained more than 100 items for whom the filenames indicate they were from as far back as 2004 and included the name of the Purdue Pharma CEO at the time of the origination of the Purdue Pharma engagements with McKinsey. The CEO was among the former Purdue Pharma executives who, in 2007, pled guilty and was convicted of misbranding in United States District Court in Abingdon.

On August 25, 2018, Elling emailed himself the following, “Remove Pur[due] folder from garbage[.]” Elling was aware of the investigations into Purdue Pharma’s conduct and knowingly deleted folders, documents, and emails from his McKinsey-issued laptop knowing these documents would be pertinent to those investigations.

The case was prosecuted by Assistant United States Attorney Randy Ramseyer of the United States Attorney’s Office for the Western District of Virginia; Assistant United States Attorneys Amanda P. Masselam Strachan and William B. Brady of the United States Attorney’s Office for the District of Massachusetts; Senior Trial Counsel Kristen M. Echemendia of the Civil Division’s Commercial Litigation Branch (Fraud Section); Trial Attorneys Jessica Harvey and Steven R. Scott of the Civil Division’s Consumer Protection Branch; and Special Assistant United States Attorneys and Assistant Attorneys General Kristin Gray and Kimberly Bolton of the Virginia Office of the Attorney General’s Medicaid Fraud Control Unit.

The matter was investigated by the Food and Drug Administration – Office of Criminal Investigations, Federal Bureau of Investigation, and the Offices of the Inspector General of the Department of Health and Human Services, Department of Veterans Affairs, and Office of Personnel Management, with assistance from the Department of Justice’s Computer Crimes and Intellectual Property Section.

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